

Vardhman Casting Pvt. Ltd. v. U.P. Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 21 August 2026 · Writ - C No. 35386 of 2011 · **Writ dismissed in default; interim vacated.**

HEADNOTE

Vardhman Casting challenged UPPCL's additional security demand. In 2011 a Division Bench observed that s.47 of the Electricity Act, 2003 is to be read with cl. 4.20 of the U.P. Electricity Supply Code, 2005, called for a counter, and continued earlier-pattern interim subject to furnishing security other than cash or bank guarantee. Listed in 2026 as an oldest pending case after counsel's death, none appeared for the petitioner. The writ was dismissed in default and the interim vacated, with liberty to seek recall within one month.

FACTUAL SUMMARY

Vardhman Casting Pvt. Ltd. challenged U.P. Power Corporation Limited's demand for additional security, contending that a prepaid scheme would make such security unnecessary. The Corporation replied that no prepaid meter was available in the State. In 2011 the High Court noted about five hundred similar writs with interim orders, called for a counter-affidavit, and continued earlier-pattern protection subject to furnishing security other than cash or bank guarantee. Years later the petitioner's counsel had died; when the oldest-pending list was called, none appeared.

HOLDING-UNITS

HOLDING-UNIT · EA2003::47

additional security

HOLDING

The writ challenging the additional security demand under s.47 of the Electricity Act, 2003 was dismissed in default for non-appearance on an oldest-pending list; the 2011 interim continuing protection on security other than cash or bank guarantee was vacated, with liberty to seek recall within one month. ¶ 3-5

PRINCIPLE TAGS

additional-security Vardhman Casting challenged UPPCL's additional security demand. In 2011 a Division Bench observed that s.47 of the Electricity Act, 2003 is to be read with cl. 4.20 of the U.P.. ¶ 3-5

security-deposit-is-advance-payment-not-debt Vardhman Casting challenged UPPCL's additional security demand. In 2011 a Division Bench observed that s.47 of the Electricity Act, 2003 is to be read with cl. 4.20 of the U.P.. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY IS PAYABLE UNDER S.47 OF THE ELECTRICITY ACT, 2003 READ WITH CL. 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, OR IS UNNECESSARY IF A PREPAID SCHEME IS PROVIDED

The 7 July 2011 interlocutory order framed that interplay and recorded the licensee's plea that no prepaid meter was available in the State, but the 2026 default dismissal did not decide it.